

The National Biosecurity Committee's (NBC) response to recommendations of the 2017 review of the National Environmental Biosecurity Response Agreement (NEBRA), and the reasons behind these positions is provided below.

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Recommendation 1.

The language used in the NEBRA to describe stakeholders should be consistent with that used in the broader IGAB and the other biosecurity response agreements (EADRA and EPPRD).

The NBC supports in part this recommendation.

- The NBC proposes that the language of the revised NEBRA be consistent with the other emergency response deeds.
- However, the revised NEBRA will not be redrafted using the language of the Independent Review of the Intergovernmental Agreement on Biosecurity, Priorities for Australia's biosecurity system (the IGAB report) which uses the term 'system participant'. Instead the NEBRA will refer to 'non-government entities'.

Rationale:

- Moving to language consistent with the other emergency response deeds will create greater understanding across the deeds, less confusion and faster decision making in emergency responses.
- 'System participant' is a term used throughout the IGAB report and covers the Australian Government, state and territory governments, local government, industry, general community and non-government organisations and is therefore not the correct term for non-government entities wishing to participate in the NEBRA.
- Industry, environmental organisation and land custodians should relate more to the term 'non-government entity' than 'private beneficiary'.

Recommendation 2.

The Commonwealth Department of Agriculture and Water Resources (DAWR) should remain as the custodian of NEBRA. If, following the IGAB Review, a new entity is created with responsibility for environmental biosecurity, consideration should be given to the role the entity should play in relation to NEBRA custodianship.

The NBC supports in part this recommendation.

- The NBC has agreed that the Commonwealth will lead an approach to market for the services of a NEBRA custodian.
- Should an appropriate body be identified, that organisation would be contracted for 5 years to undertake the role, and this would be cost shared by signatories to the NEBRA.

- Should no appropriate organisation be identified, the now Department of Agriculture, Water and the Environment (DAWE) will remain the custodian at current resourcing and responsibilities.

Rationale:

An approach to market undertaken within the Commonwealth Procurement Rules ensures value for money for cost sharing partners at the same time as providing potential service providers with an equitable opportunity to demonstrate that they are the best entity to undertake the role.

Recommendation 3.

National Biosecurity Management Group (NBMG) meetings should be co-chaired by an executive from the Commonwealth Department of the Environment and Energy (DoEE), potentially the Chief Environmental Biosecurity Officer if that position is created following the IGAB Review.

The NBC does not support this recommendation.

Rationale:

- From 1 February 2020, biosecurity and environment portfolios sit within the same Commonwealth department, DAWE.
- Unnecessary duplication of chair activities and would increase the complexity of NBMG meeting protocols and decision making processes.
- Having a co-chair for NEBRA responses would be inconsistent with other deed arrangements.
- Role of Australian Chief Environmental Biosecurity Officer (ACEBO) would be inconsistent with Australian Chief Plant Protection Officer (ACPPPO) and Australian Chief Vet Officer (ACVO).

Recommendation 4.

NBMG members should undertake formal consultation with their environment agency counterparts in each jurisdiction prior to any substantive decision being made under the NEBRA.

The NBC does not support this recommendation:

- There will be no formal requirement to consult across agencies written into a revised NEBRA.
- Jurisdictions will continue their current practice of consulting across agencies, where applicable, on substantive decisions made under the NEBRA.

Rationale:

- Consultation should not be an explicit requirement within the NEBRA as it may lead to administrative delays in an emergency response environment.
- Jurisdictions may nominate the appropriate agency to be the voting member on NBMG and the NEBRA should not dictate otherwise.
- For some jurisdictions, including the Commonwealth, there is one agency responsible for biosecurity and environment matters.

Recommendation 5.

The NEBRA custodian role should be enhanced to support a maturing NEBRA. Areas of focus include greater public transparency around decision making, greater support for the development of interpretative guides, enhanced communication with non-government stakeholders and general co-ordination of stakeholder activity. An enhanced custodian role would require a greater level of resourcing for the NEBRA custodian role.

The NBC supports in principle this recommendation, noting that the enhanced role will be considered as part of determining future custodian arrangements in line with the NBC position to recommendation 2.

Recommendation 6.

The NEBRA Administrative Group formed for the purpose of guiding this review should be instituted as an ongoing body to enable the states and territories to support and engage with an enhanced NEBRA custodian. It would also facilitate continuity of oversight and allow for feedback to the custodian in a structured manner.

The NBC does not support this recommendation.

Rationale:

- Since the NEBRA review, the Environment and Invasives Committee (EIC) has been established, which has responsibility for overarching NEBRA policy outside the response context and the custodian role – maintaining the Administration Group would be a duplication.
- EIC represents each signatory to the NEBRA (currently 9 out of 11 individual members of the Administration Group are active members on the EIC).
- With no industry signatories to the NEBRA, a similar stand-alone administration group to those that operate under the other deeds, in addition to the EIC, is not needed.

Recommendation 7.

A summary of decisions made by NBMGs on whether or not to apply NEBRA should be made publicly available in a timely manner to encourage wider understanding of the operation of the agreement.

The NBC considers this recommendation implemented following NBC agreement, in February 2018, to the public release of information in relation to potential cost-shared responses considered by NBMG, excluding the budget information.

In addition, the status of, and where appropriate the outcomes of NBMCC and the NBMG meetings will be made publically available on the Outbreak webpages.

Recommendation 8.

The NEBRA should be re-drafted around four phases to a response: Incident Definition, Emergency Response, Proof of Freedom and Transition to Management (consistent with EPPRD). The commencement of each phase should require separate approval by NBMG of a phase plan in order to limit the scope of cost-shared activity.

The NBC supports this recommendation.

Rationale:

- Stakeholders are familiar with four phases written into the Emergency Plant Pest Response Deed (EPPRD) and the Emergency Animal Disease Response Agreement (EADRA).
- Being able to breakdown a response into these phases assists in understanding what aims and activities are appropriate at different points in a response.

Recommendation 9.

Analysis and documentation conducted during the Incident Definition Phase should be eligible for cost sharing, contingent on an initial assessment by NBMG of the likelihood that an incident will meet NEBRA criteria and approval of an Incident Definition Plan.

The NBC does not support this recommendation, however, options to assist smaller jurisdictions to undertake Incident Definition Phase activity will be explored by the EIC.

Rationale:

- Incident Definition Phase activity is currently understood within the deed framework to be 'normal commitments' and there is not sufficient reason to take an inconsistent approach to this in the NEBRA.
- The acceptance of this recommendation may result in all jurisdictions paying for activity which do not result in NEBRA responses and should have been part of a jurisdiction's normal commitments.

Recommendation 10.

The NEBRA should be re-drafted to allow for a time-limited (12 month) cost-shared Transition to Management phase. This Transition to Management phase could follow on from an Emergency Response phase where eradication has been determined no longer to be possible.

The NBC supports this recommendation but asked that the revised NEBRA include a provision allowing NBMG to agree to Transition to Management (T2M) extending beyond 12 months (where unanimously agreed by NBMG).

Rationale:

- A T2M phase will enable NEBRA signatories to optimise outcomes and benefits of the investment made to eradicate a pest or disease.
- A sudden withdrawal of funding, when it is determined that eradication is no longer achievable, may result in a less than adequate T2M.
- Including a T2M in the NEBRA will ensure that NBMG maintains oversight of the progress to effective ongoing management of the pest or disease.

Recommendation 11.

The feasibility of conducting a five-yearly test of preparedness for the unique challenges posed by an environmental biosecurity response under NEBRA should be considered by the National Biosecurity Committee.

The NBC supports this recommendation and will direct the EIC to develop a preparedness exercise program, in consultation with the NEBRA custodian, for NBC to consider and cost share where appropriate.

Rationale:

- Provides the opportunity to assess signatories understanding of the NEBRA and their ability to respond in an emergency situation.
- Provides an opportunity to engage with non-government entities and build their understanding of the NEBRA.
- Recognises preparedness for environmental biosecurity incidents requires equal attention within the existing biosecurity preparedness programs of activity.

Recommendation 12.

Meeting and decision making protocols in NEBRA should be redrafted to reflect that:

- The National Biosecurity Management Consultative Committee (NBMCC) provides technical and expert advice to the NBMG, it does not make decisions and its meetings should not involve voting. If members of the NBMCC hold different views all views should be incorporated into the written advice to the NBMG.
- Voting membership of the NBMG should be limited to parties who will be contributing to a cost-shared response. Jurisdictions who are not potentially affected by a pest or disease or who have indicated that they do not intend to contribute to a cost-shared response should be non-voting members of the NBMG.
- All decisions of the NBMG should need to be made unanimously between voting members.
- Where attendance at NBMG meetings is delegated, the jurisdiction must enable that delegate to make decisions during the meeting.

A. The NBC supports this recommendation.

- The NBMCC will continue to be recognised as the technical group that provides expert advice to the NBMG and the NBMG will continue to be the ultimate decision making body for decisions under the NEBRA.
- NBMCC decisions on the recommendations and advice it makes to NBMG will be made by consensus. Different views of NBMCC members can be written in the advice provided to NBMG.
- This protocol of decision making and the definitions of 'consensus' and 'unanimous' will be consistent with the Emergency Plant Pest Response Deed.

Rationale:

- As much consistency as possible is needed in meeting protocols and voting rules because members of NBMCC or NBMG may be a member on other deed consultative committees or National Management Groups. Well established principles are required as inconsistency can lead to delays and misunderstanding of processes at times when decision making is complex and time critical.

B. The NBC does not support this recommendation. Jurisdictions that are not potentially affected by a pest or disease, or have indicated they do not intend to contribute to a cost-shared response, will remain voting members of the NBMG for all issues, apart from financial decisions.

Rationale:

- Each NBMG member should vote on national significance and feasibility to eradicate, even when they are not potentially affected by a pest or disease under consideration. This provides a check and balance across jurisdictions and means that, should the understanding of the potential distribution of the pest change, each jurisdiction was provided the opportunity to be part of the initial decision making.

C. The NBC does not support this recommendation. NBMG decisions will be made by consensus, with the exception of cost-sharing decisions, which must be unanimous.

Rationale:

- As all NBMG members will be required to vote on decisions of national significance and technical feasibility even when not a cost sharing party to the response, it is not appropriate that these decisions be unanimous.
- Cost sharing decisions do, however, need to be unanimous between those that will be contributing to the response.

D. The NBC supports this recommendation. The revised NEBRA contains a clause that delegates must be able to make financial decisions in the meeting.

Recommendation 13.

The NEBRA should be amended to allow any system participants to seek approval to participate in NBMG meetings as voting members if the system-participant has made (or will make) significant in-kind or financial contributions to a response in relation to an outbreak. Inclusion of system-participants as voting members should be at the discretion of the other NBMG members.

The NBC supports this recommendation on condition that the requirements for non-government participation are clear in addressing why an organisation will/ will not be accepted as voting members at NBMG. These requirements will be drafted prior to finalising the revised NEBRA along the following lines:

- All NBMG members must agree unanimously to the inclusion of a non-government voting party at NBMG (not just the ‘affected parties’ contributing financially to the response).
- The non-government entity would need to meet the following criteria to become a voting member:
 - demonstrated ability to make a ‘significant’ financial or equivalent in-kind contribution where ‘significant contribution’ is defined as a percentage of the overall budget;
 - is a suitable representative of a stakeholder group (for example, legal standing as a land custodian); and
 - demonstrate that the proposed financial or in-kind contribution and confidentially provisions will be met.
- The term ‘non-government entity’ will be used instead of ‘private beneficiary’ or ‘system participant’.

Rationale:

- The NEBRA currently enables ‘private beneficiaries’ to participate, and vote, in NBMG meetings, however, no private beneficiary has participated in NBMG meetings to date.
- Providing clear criteria on what is required for non-government organisations to become voting members at NBMG could encourage more participation from non-government organisations.
- Having non-government organisations contribute to a response decreases the costs for each jurisdiction and would bring diverse expertise to the NBMG.
- The risk that a non-government party may be the only vote in opposition to an activity in the response plan is low and could be overcome by taking the response off-deed.
- The proposed approach increases the scrutiny of non-government membership by requiring all NBMG members to unanimously agree, rather than the decision being made by NBMG Chair.

Recommendation 14.

National significance for proposed NEBRA responses should be assessed in line with a broader risk prioritisation framework (such as that recommended in the draft IGAB report) rather than static criteria for national significance.

The NBC does not support this recommendation.

- The NBC agreed practice and guidance documents will provide more value than changing the criteria.
- The NBC agreed to remove the 'business activity' criteria (see decision at Admin group issue 1).
- While it does not support this recommendation the NBC sees value in the development of a broader risk prioritisation framework and will explore development of this framework with the NEBRA Custodian and EIC.

Rationale:

- The current NEBRA national significance criteria were agreed upon in 2012 following extensive consideration. The NBC felt that they have not been used enough times since then to indicate they needed to be changed or provide sufficient evidence on how they could be improved.
- Members noted a risk prioritisation framework is not currently available for consideration but will work through the Custodian and EIC to explore its development.

Recommendation 15.

Benefit-cost analysis requirements and guidance in NEBRA should be revised and simplified to accept qualitative descriptions of benefits where no pre-existing studies on the cost of an outbreak are available.

The NBC supports this recommendation.

- The use of qualitative descriptions in NEBRA Benefit Cost Analysis (BCA) will be retained in a revised NEBRA
- In addition, to better clarify the acceptance of qualitative assessments in NEBRA BCAs, Schedule 4A of the NEBRA will be removed.
- Jurisdictions will be able to nominate their preferred method of BCA as each economist and consultant has differing views on the best approach BCA.
- A guidance will be developed for use by jurisdictions if they choose to.

Rationale:

- The NEBRA already allows for qualitative descriptions if quantitative data is not available.
- A BCA is an important component for consideration of a response plan as responses are costly and jurisdictions need to know their financial investment will be beneficial.

Recommendation 16.

The National Biosecurity Committee should consider whether there is sufficient support to revise NEBRA to provide for cost-shared responses aimed at containment in some instances. These instances may include wildlife disease or environmental weeds where it may be difficult to demonstrate feasibility of eradication but there are net benefits in a national, time-limited containment response.

Alternatively, a different mechanism could be developed to facilitate cost sharing arrangements where eradication is not possible, but there are joint benefits to ensuring containment.

NBC does not support this recommendation but has agreed to include additional circumstances in which containment activity will be eligible to cost share under the NEBRA.

- Where NBMG has determined that a pest or disease is nationally significant, there is a genuine presumption of it being technically feasible to eradicate and work is underway to confirm this feasibility, containment activity undertaken in the Incident Definition Phase will be eligible for cost sharing. The activities will only be eligible for cost sharing up until the point that NBMG agrees an eradication response or determines that it is not technically feasible to eradicate the pest or disease.

Rationale:

- Emergency response deeds do not cover containment as a response outcome, but an activity that could be taken at any point in a response.
- Changing the scope of the NEBRA to cover containment as a response outcome would be inconsistent with other response deeds and the increased financial burden on jurisdictions is not acceptable.
- Establishing if an environmental pest or disease is technically feasible to eradicate is more challenging than for agricultural incidents due to limited data on the biology and impacts of environmental pests and diseases. On occasion, all jurisdictions will benefit from effective containment of the pest or disease while an option to pursue an eradication response remains.

During the 2017 review process, the NEBRA Review Administration Group highlighted a further three issues for consideration. The NBC agreed to support the suggested changes which are detailed below.

Admin group issue 1.

Remove 'business activity' from the national significance criteria.

The NBC supports the removal of the 'business activity' part of the national significance criteria in a revised NEBRA and to communicate this change clearly to stakeholders.

Rationale:

- The scope of the 'business activity' part of the national significance criteria (Section 4 of Schedule 3) is wider than jurisdictions had previously realised.
- The original intent was to capture substantial increases in business costs or business losses due to the impacts of a pest or disease on industry not covered by other deeds (such as tourism) and to enable industry an opportunity to contribute as a cost-sharing partner and voting member of NBMG.
- The business activity component was also thought to be important to capture impacts by marine species, such as those that impact on critical sea ports. It is the view of the NBC that the remaining national significance criteria Schedule 3, 1c (ii) 'human infrastructure', would cover

this scenario. Guidance material that will be developed for the application of the national significance criteria will include this scenario.

- Removing the 'business activity' component of the national significance criteria will align the criteria with the known intent of the NEBRA, prevent a perverse outcome where the NEBRA is used to fund an eradication of a pest or disease that only impacts on business and continue to enable industry and other entities to cost-share responses and become voting members of the NBMG.

Admin group issue 2. Two part process to NBMG

Under the NEBRA parties must decide if an incident is nationally significant and likely to be eradicable. If agreement is reached, the notifying party then prepares the analysis on technical feasibility of eradication, cost benefit and the response plan. The Admin group recommend suggest collapsing this two step decision making process into one.

The NBC supports this approach.

Rationale:

- Making this change will bring the NEBRA into line with current practice at NBMCC and NBMG and will align the process with the EPPRD and EADRA.
- There is no benefit from having the two-step process in which the NBMG must decide upon risk and national significance ahead of other considerations.
- NBMG can consider and decide on a response plan that covers any single phase of a response.

Issue 3. Range extension

The Admin group recommends a definition of 'range extension' capture the intent that to trigger a cost shared response the range extension needs to be 'significant' as distinct from fighting a pest or disease on multiple fronts.

The NBC does not support this recommendation. A definition of range extension will be provided in the revised NEBRA. But it, along with other definitions will clarify that a range extension within mainland Australia (including Tasmania) will not be eligible for a NEBRA response. (The NEBRA will also have new definitions for 'incident' and 'emergency environmental pest or disease').

This is consistent other existing emergency response deeds that clearly defined scope as applying only to exotic pest and disease incursions.

The response to a mainland detection of a pest or disease that is established on an external territory, for example the Cocos (Keeling) Islands, would be eligible for cost sharing under the NEBRA. This approach recognises the 'national' verses 'regional' interest to be free from the pest or disease.

Rationale for the draft definition:

- Under the Biosecurity Act 2015, all movement of goods and conveyances from external territories to the Australian mainland are managed in the same way as international arrivals from overseas countries, rather than interstate movements. Therefore, a new detection in an external territory should be the result of a new incursion, rather than spread from the mainland (and vice versa).
- In considering a national response, if a pest or disease is already established on the Australian mainland and that pest or disease is then found on an external territory, it would be in the 'regional' rather than 'national' interest, to be free of the pest and therefore would not be eligible for cost-sharing under the NEBRA. The Commonwealth, as the jurisdiction responsible for external territories could still choose to undertake an eradication response, but this would not be eligible for national cost sharing.
- It would be in the 'national' interest to be free from the pest or disease that is established on an external territory but absent from the Australian mainland. Therefore, a national cost shared eradication response under the NEBRA could be considered for an incursion on the Australian mainland of a pest or disease that is established on an external territory.

Source: <https://www.agriculture.gov.au/biosecurity-trade/policy/emergency/nebra/summary-nbc-response>